

		with the Court forthwith. On 4/24/2026 Plaintiff filed a “proof of non-service”. To date, no Proof of Service has been filed herein to indicate the FAC has been served <i>on anyone</i>. An amendment or amended complaint must be served on “the defendants affected thereby.” [CCP § 471.5] Pursuant to CRC Rule 3.110(b), “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.” Notably, “If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed.” [CRC 3.110(f).] As such, the Court sets an OSC re: why sanctions shall not be imposed for failure to timely serve First Amended Complaint for October 8, 2026 at 10:30 am. Today’s Case management conference is continued to the same date/time. Finally, Defendant also makes a motion to dismiss under CCP§583.210 and 583.410. If service is not completed within <i>three years</i>, dismissal is <i>mandatory</i>. [CCP §§ 583.210, 583.250.] Also, Pursuant to CCP§583.410(a), “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” However, this request is denied, without prejudice, as premature. Clerk to give notice.
7.	30-2026-01541292 Alikhanian vs. Cruise	1. Case Management Conference 2. Motion to Quash Discovery Subpoena Plaintiff, Lusine Alikhanian, moves for an order quashing, or narrowing, the deposition subpoenas for business records served by Defendant Joseph T. Cruise, M.D. on Keck Medicine of USC, Keck Medicine-USC Care Physician Billing, Keck Medicine of USC-Xrays, and CVS Pharmacy, Inc. The Motion to Quash is GRANTED, in part, Denied in part. Specifically, Plaintiff contends that the four deposition subpoenas should quashed, as drafted, because they are too broad and are not limited in time or scope. In the alternative, Plaintiff requests that the deposition subpoenas be limited to records that are reasonably related to the claims at issue and within a reasonable time period. Defendants, Joseph T. Cruise, M.D. and Cruise Plastic Surgery (collectively, “Defendants”) oppose the motion. Defendants contend that the motion should be denied, or that if the Court determines any limitation is warranted, the deposition subpoenas should be reasonably limited through subject-matter and temporal limitations tied to issues Plaintiff has placed in controversy rather than quashed in their entirety. At issue are four deposition subpoenas for business records served by Defendant Joseph T. Cruise, M.D. (“Dr. Cruise”) on Keck Medicine of USC, Keck Medicine-USC Care Physician Billing, Keck Medicine of USC-Xrays, and CVS Pharmacy, Inc. (collectively, the “deposition subpoenas”).

Defendant Dr. Cruise first contends that Plaintiff's motion is untimely under Code of Civil Procedure section 1985.3(g) because it was not filed until after the April 16, 2026 production date. Although the instant motion was filed after the date set for production, the Court may rule on the motion. The court can grant a motion to quash served even after the date set for production. "Nothing in the procedure set forth above [Section 1985.3 of the Code of Civil Procedure] suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production. The time limits mentioned in the procedure for bringing the motion are obviously designed to guide those involved as to when the witness with the records may safely honor or not honor the subpoena when a consumer objects." (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312.)

As to the merits, Code of Civil Procedure section 1987.1 provides, in pertinent part: "[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc. § 1987.1, subds. (a)-(b).)

Code of Civil Procedure section 1985.3 provides, in pertinent part: "Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records." (Code Civ. Proc. § 1985.3(g).)

The California Constitution expressly grants Californians a right of privacy and the protection of informational privacy is the provision's central concern. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) "[W]hen a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion. [Citation.]" (*Id.* at p. 556.) In evaluating potential invasions of privacy, "[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.]" (*Id.* at p. 552.) "The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" (*Ibid.*) This test has been applied to circumstances involving competing claims for access to third party contact information. (*Ibid.*) A compelling interest or compelling need is not required all cases, although it "is still required to justify 'an obvious invasion of an interest fundamental to personal autonomy.' [Citation.]" (*Id.* at p. 556.)

There is a constitutional right to privacy in one's medical records. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 841) [medical records] ("*Vinson*"); *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014 [medical records] ("*Davis*"); *Cutter v. Brownbridge* (1986) 183 Cal.App.3d 836, 842, overruled on other grounds in *Jacob B. v. County of Shasta* (2007) 40 Cal.4th 948 [the right to control circulation of personal information is fundamental and there is a constitutional right to privacy under Article 1, Section 1 of the California Constitution to one's medical history].) Thus, disclosure may be ordered only when the information is directly relevant and essential to the fair resolution of

the lawsuit, and where the need for disclosure outweighs privacy concerns. “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner. [Citation.]” (*Davis, supra*, 7 Cal.App.4th at p. 1014.) The party seeking disclosure of the constitutionally protected information bears the burden of establishing direct relevance. (*Id.* at p. 1017.)

A defendant is entitled to records concerning the body parts and conditions at issue in the case. (See *Vinson, supra*, 43 Cal.3d at p. 842 [where plaintiff sues for personal injuries, the physician-patient and psychotherapist-patient privileges are waived for conditions “tendered” in the action or related to the issue of proximate causation].) A defendant is not entitled to review such records on the mere hope that it may disclose some condition bearing on plaintiff’s claims. (*Davis, supra*, 7 Cal.App.4th at p. 1017.) A defendant must show through evidence how the particular records sought are directly relevant and necessary; speculating that the records may reveal a contributing preexisting condition does not suffice. (*Ibid.*)

On their face, the four requests in the subject four deposition subpoenas **are overbroad in time and scope and seek Plaintiff’s entire medical history with Keck Medicine and CVS Pharmacy. In turn, as written, they intrude upon Plaintiff’s right to privacy** in Plaintiff’s medical history and records.

However, both parties make alternative requests, and the Court may modify the requests in the deposition subpoenas.

Defendants argue that the deposition subpoenas seek discovery relevant to claims and defenses Plaintiff has placed directly at issue, including post-surgical course, causation, damages, life expectancy, future damages, and lack of informed consent. Each category will be discussed in turn.

There is no dispute that discovery of Plaintiff’s medical and pharmacy records implicates Plaintiff’s privacy interests, and that medical conditions that are tendered by this action are discoverable. This action arises from an elective cosmetic upper blepharoplasty and temple lift performed by Defendant Dr. Cruise on September 19, 2024. (First Amended Complaint (“FAC”), ¶ 11.) Based on the allegations of the operative FAC, Plaintiff has tendered medical care relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes and eyelids, to the present. (FAC, ¶¶ 12-33.) Thus, medical records from Keck Medicine and pharmacy/prescription records from CVS Pharmacy relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes and eyelids, to the present, are discoverable.

As to causation, damages, life expectancy, and future damages, Defendants’ arguments of possible other conditions, treatment, medications, imaging findings, ophthalmologic issues, or unrelated medical factors which may have contributed to or caused the complaints Plaintiff attributes to Dr. Cruise, as well as possible other medical history, chronic conditions, serious illnesses, medication history, or other health factors unrelated to Dr. Cruise that may affect life expectancy are speculative. Defendants fail to present any evidence showing other causes of Plaintiff’s alleged injuries/damages and other medical conditions or health factors unrelated to Dr. Cruise that may affect life expectancy. Disclosure of all of Plaintiff’s medical records at Keck Medicine and pharmacy records at CVS Pharmacy intrudes upon Plaintiff’s medical privacy and is not narrowly tailored, not drawn with narrow specificity, and is not the least intrusive manner to obtain the information sought. As such, on balance, Plaintiff’s right to privacy of her medical records outweighs Defendants’ need for discovery.

		Lastly, for lack of informed consent, Defendants seek records of prior surgical consent, informed-consent, and risk-disclosure which may show what risks Plaintiff was informed of, what risks she accepted, whether she had prior experience with comparable procedures or complications, and whether she previously consented to elective procedures despite disclosed risks. Defendants show that such records would be directly relevant to a defense to Plaintiff’s claim for lack of informed consent. However, such records are limited as follows: Plaintiff’s medical records, billing records, and x-rays from Keck Medicine relating to prior elective surgical procedures for the time period of January 1, 2019, to the present. Based on the foregoing, the motion to quash is GRANTED as to all medical, billing, and x-ray records from Keck Medicine and pharmacy/prescription records from CVS Pharmacy for Plaintiff <i>except</i> as the following: • Medical, billing, and x-ray records relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes, eyelids, and orbit from September 2024, to the present; • Pharmacy and prescription records from CVS Pharmacy related to medical care and conditions relating to Plaintiff’s eyes, eyelids, and orbit from September 2024, to the present; and • Plaintiff’s medical records, billing records, and x-rays from Keck Medicine relating to prior elective surgical procedures only for the time period of January 1, 2021, to the present. Plaintiff’s request for a monetary sanction is DENIED. Plaintiff to give notice.
8.	30-2025-01535433 BCAL Construction Inc vs. LA Clinique Moliere Birthplace and Woman’s Wellness, Inc	1. Case Management Conference 2. Motion to Deem Facts Admitted 3. Status Conference re: ADR Plaintiff BCal Construction Inc. (“Plaintiff”) moves for an order (1) deeming the truth of all matters specified in Plaintiff’s first set of Requests for Admission as admitted; and (2) imposing monetary sanctions on Defendant La Clinique Moliere Birthplace and Women’s Wellness, Inc. (“Defendant”). Code of Civil Procedure section 2033.280(b) provides that, when a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010).” Subdivision (c) provides that the Court shall make this order, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” Here, Defendant served substantially compliant responses prior to the hearing. (Ferguson Decl., ¶ 5, Exh. A.) The motion is therefore MOOT as to deeming matters admitted.